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Terms of Service

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Welcome to TUWA! These Terms of Service ("Terms") govern your access to and use of the websites located at tuwa.io, demo.tuwa.io, custom-styles.tuwa.io, the Quasar dashboard located at quasar.tuwa.io, and our open-source npm packages (Orbit, Satellite, Pulsar, Nova, and SIWX) (collectively, the "Ecosystem"), provided by FOP Tkach Oleksandr. By accessing the Ecosystem, you agree to be bound by these Terms.

1. Open Source Software & SaaS Cloud

The TUWA Ecosystem represents a hybrid architecture. Our npm packages (including Orbit, Satellite, Pulsar, Nova, and SIWX) are open-source and licensed under the [Apache 2.0 License](https://www.apache.org/licenses/LICENSE-2.0). Quasar is our proprietary, integrated SaaS cloud layer providing API endpoints, state synchronization, billing, and dashboard features.

2. "As Is" and "As Available"

The Sites, Quasar, and the Software are provided on an "AS IS" and "AS AVAILABLE" basis, without any warranties of any kind, either express or implied, including, but not limited to, implied warranties of merchantability, fitness for a particular purpose, or non-infringement. You use them at your sole risk.

3. Assumption of Risk

You acknowledge and agree that you are solely responsible for your use of the Ecosystem. You understand the inherent risks associated with cryptographic systems, blockchain-based software, decentralized networks (EVM, Solana, etc.), and smart contracts. We are not responsible for lost funds, compromised keys, or transaction failures.

4. Third-Party Services and Links

The Ecosystem may utilize or integrate with third-party Web3 infrastructure (e.g., RPC providers, external wallets, analytics). We assume no responsibility for the uptime, security, or practices of any such third-party services.

5. Account & Billing

If you use Quasar's paid tiers, you agree to provide accurate billing information. Your billing history and transaction quotas are tracked immutably for audit purposes. You are responsible for safeguarding your SIWX sessions and Quasar API credentials.

6. Limitation of Liability

To the fullest extent permitted by applicable law, in no event will FOP Tkach Oleksandr or its affiliates be liable for any direct, indirect, incidental, special, or consequential damages arising out of your use of the Ecosystem, including but not limited to loss of data, loss of profits, or business interruption.

7. Governing Law

These Terms shall be governed by and construed in accordance with the laws of Ukraine, without regard to its conflict of law provisions.